

IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

Sweet Living, Inc.,
Plaintiff,

Case No.: 26-CC-001256

Division: JUDGE: K

DATE: 6-3-26

v.

Brandi Rodgers,
Defendant.

**DEFENDANT'S VERIFIED EMERGENCY MOTION TO VACATE DEFAULT
FINAL JUDGMENT PURSUANT TO FLA. R. CIV. P. 1.540(b)(1)**

Defendant, BRANDI RODGERS, appearing pro se, pursuant to Florida Rule of Civil Procedure 1.540(b)(1), respectfully moves this Honorable Court to vacate the Default Final Judgment entered against her on June 2, 2026, and in support states:

INTRODUCTION

1. On June 2, 2026, this Court entered a Default Final Judgment against Defendant after she arrived approximately ten (10) minutes late to the scheduled final hearing. Her tardiness was the sole and direct result of an unforeseeable, severe traffic delay encountered during an approximately two (2) hour commute to the courthouse.
2. Florida law strongly favors the resolution of cases on their merits rather than by default. A defendant is entitled to relief from a default judgment upon establishing (1) excusable neglect, (2) a meritorious defense, and (3) due diligence in seeking relief. Defendant satisfies all three prongs.

PRONG ONE - EXCUSABLE NEGLECT

3. Defendant departed from Seminole, Florida, with what she reasonably believed was sufficient time for the two-hour drive.
4. While en route, Defendant encountered unexpected and severe traffic congestion that she could not have anticipated or avoided.
5. Defendant arrived at the courthouse only approximately ten (10) minutes late and immediately presented herself, only to learn a default had already been entered.
6. Such traffic delays constitute classic excusable neglect. See *Fawkes v. Wignal*, 393 So. 3d 737 (Fla. 4th DCA 2024).
7. The facts are sworn to in the Affidavit of Brandi Rodgers, attached as Exhibit "A."

PRONG TWO - MERITORIOUS DEFENSE

8. Defendant has multiple complete defenses:

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(a) Lack of Legal Ownership (§ 319.22(1), Fla. Stat.). Defendant is not the titled owner. Title was never transferred to her; Sally Potes remains the owner of record. No court shall recognize any right, title, claim, or interest in the mobile home unless evidenced by a duly issued certificate of title.

(b) Lack of Approved Tenancy and Statutory Rescission (§ 723.059(1), Fla. Stat.). Plaintiff's manager denied tenancy approval and barred Defendant from the property. Defendant never took possession and timely rescinded the purchase by certified-mail demand. No landlord-tenant relationship ever existed.

(c) No Obligation to Deposit Rent into Registry until tenancy is proven. See *Frey v. Livecchi*, 852 So. 2d 896 (Fla. 4th DCA 2003).

9. A proposed Answer and Affirmative Defenses is attached as Exhibit "B."

PRONG THREE - DUE DILIGENCE

10. Defendant is filing this Motion on June 3, 2026, one business day after the judgment, which is prompt and reasonable.

WHEREFORE

WHEREFORE, Defendant respectfully requests that the Court:

- (a) Set this Motion for an evidentiary hearing;
- (b) VACATE the Default Final Judgment entered June 2, 2026;
- (c) Accept Defendant's Answer and Affirmative Defenses;
- (d) Stay any writ of possession; and
- (e) Grant such other relief as the Court deems just and proper.

VERIFICATION

Under penalties of perjury, I declare that I have read the foregoing Motion and that the facts stated in it are true and correct to the best of my knowledge and belief.

Brandi Rodgers June 3, 2026

Brandi Rodgers, Defendant, Pro Se

13721 94th Ave. N

Seminole, FL 33776

(727) 621-6090

brandisreallife@gmail.com

Dated: June 3, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was served on June 3, 2026 via e-service through the Florida Courts E-Filing Portal to Plaintiff's counsel:

Keith William Wynne, Esq.

Florida Bar No. 898201

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Brandi Rodgers June 3, 2026

Brandi Rodgers